

21 August 2025 / rri - mti

29534/ICA3



ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

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Harald Reiszner
INVICTUS HOLDING IC GMBH

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By email and ICC Case Connect

Dear Sir,

Notification of a Request for Joinder

The Secretariat of the International Court of Arbitration of the International Chamber of Commerce (“Secretariat”) notifies you that, on 7 August 2025, it received a Request for Joinder from Claimant represented by LUTHRA AND LUTHRA LAW OFFICES INDIA, that names you as an additional party to this arbitration. Pursuant to Article 7(1) of the ICC Rules of Arbitration (“Rules”), this arbitration commenced on that date against the additional party.

In all future correspondence, any capitalised term not otherwise defined will have the meaning ascribed to it in the Rules and references to Articles of the Rules generally will appear as: “(Article ***)”.

The ICC Rules include the Expedited Procedure Provisions (“Provisions”) (Article 30 and Appendix VI) which apply if the amount in dispute does not exceed amounts referred to under Article 1(2) of Appendix VI, subject to the conditions set forth in Article 30(3). The parties can also agree on the application of these Provisions in all other cases.

We enclose a copy of the Request for Joinder, the documents annexed (Article 7(3)) thereto, and a copy of the file.

ICC Case Connect

Your arbitration proceedings benefit from the ICC’s Dispute Resolution Services case management digital platform. More information about ICC Case Connect powered by Opus 2 (“ICC Case Connect”) is available at [ICC Case Connect Support](#).

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

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Throughout your arbitration proceedings, you will benefit from a dedicated case space to facilitate communications and document-sharing. Parties and arbitral tribunals are encouraged to make use of this centralised case environment, although they remain free to determine the extent to which they do so. ICC Case Connect will constitute the Secretariat's principal means of communication throughout the proceedings (Article 3(2)), therefore case users should envisage that some interaction with the platform will be necessary.

Following the present notification of the Request for Joinder by email, all persons indicated by Claimant or Respondent as representing an additional party will receive an ICC Case Connect platform notification from "no-reply@iccwbo.org" inviting them to create an account (if they do not already have one), and to access their dedicated case space. If you wish to include other users to its case space, please provide their email addresses and contact details.

You are encouraged to connect to ICC Case Connect promptly and are invited to file future correspondence and submissions, including the Answer, or any request for an extension of time to submit the Answer, directly via ICC Case Connect.

Contact the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for assistance and technical support. The ICC Case Connect platform notification inviting you to create an account is valid for 24 hours⁷ days and can be reactivated by contacting the ICC Case Connect helpdesk. Once you have received the email notification inviting you to access your case space, you will be able to explore [ICC Case Connect](#).

Caption

Please comment on which of the following two captions should be used, in your Answer or any request for an extension of time for submitting your Answer:

ELCOMPONICS HOLDINGS B.V. (The Netherlands) **vs/** 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria) **vs/** INVICTUS HOLDING IC GMBH (Austria)

or

ELCOMPONICS HOLDINGS B.V. (The Netherlands) **vs/** 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria) 3. INVICTUS HOLDING IC GMBH (Austria)

Failing receipt of comments from all parties, the caption will be the following:

ELCOMPONICS HOLDINGS B.V. (The Netherlands) **vs/** 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria) **vs/** INVICTUS HOLDING IC GMBH (Austria)

Answer to the Request for Joinder

Your Answer to the Request for Joinder ("Answer") is due **within 30 days** (Article 7(4)).

Pursuant to Article 7(3), where a party requests transmission of the Answer by delivery against receipt, registered post or courier, it must submit a sufficient number of copies for each other party, each arbitrator and the Secretariat.

You may apply for an extension of time for submitting your Answer by providing your comments on the number of arbitrators and, where appropriate, nominating an arbitrator (Articles 7(4) and 5(2)). Such information will enable the International Court of Arbitration of the International Chamber of Commerce ("Court") to take steps towards the constitution of the arbitral tribunal.

If any of the parties refuses or fails to take part in the arbitration or any stage thereof, the arbitration will proceed notwithstanding such refusal or failure (Article 6(8)).

Once we have received the Answer, we will send it to all parties.

As indicated above, we encourage you to submit the Answer together with any exhibits via ICC Case Connect.

If you submit the Answer by email, the number and/or the size of the exhibits may create a risk that the email may not be delivered. In this case, you are kindly invited to send by email what you consider essential at this point, subject to filing the other exhibits at a later stage of the proceedings.

As provided in the Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration (“Note”), hard copies should not be sent to the Secretariat, even when the arbitral tribunal asks to be provided with hard copies. Any hard copies sent to the Secretariat will be destroyed upon receipt.

Joinder of Additional Parties

No additional party may be joined to this arbitration after the confirmation or appointment of any arbitrator, unless all parties including the additional party otherwise agree (Article 7(1)). Therefore, if you intend to join an additional party and seek an extension of time for submitting your Answer, please inform us in your application for such extension.

Funding of Claims or defences

In order to assist prospective arbitrators and arbitrators in complying with their duties, parties must promptly inform the Secretariat, the arbitral tribunal and the other parties of the existence and identity of any non-party which has entered into an arrangement for the funding of claims or defences and under which it has an economic interest in the outcome of the arbitration (Article 11(7)).

Constitution of the Arbitral Tribunal

The arbitration agreement provides for one arbitrator. If the parties fail to jointly nominate the sole arbitrator within **30 days** or any additional time allowed by the Secretariat, the Court will appoint the arbitrator (Article 12(3)).

Place of Arbitration

The arbitration agreement provides in relevant part that “*the seat of arbitration shall be Paris*”. Unless otherwise advised, we understand that Paris, France is the place of arbitration.

Language of Arbitration

The arbitration agreement provides for English as language of arbitration.

Amount in dispute

The amount in dispute is currently partially quantified at US\$ 4 636 690 (*i.e.*, EUR 4 100 000 for the partially quantified principal claims).

We enclose a table on the financial aspect of the arbitration (“Financial Table”).

VAT payable on ICC Administrative Expenses

As of 1 January 2021 and to the extent that value added tax (“VAT”) is applicable, ICC administrative expenses will be subject to VAT. Accordingly, ICC administrative expenses may be increased by the corresponding amount at the prevailing rate as set out in the Explanatory Note on VAT Applicable on ICC Administrative Expenses (“Explanatory Note”) available on the ICC website. The applicable rate under French tax law is currently 20%.

The Secretariat’s requests for payment of the advance on costs will result in the issuance of invoices that will cover all amounts requested (i.e. amounts to cover ICC administrative expenses alongside the advance on arbitrators’ fees and expenses). VAT will be charged and invoiced on the requested advance payments corresponding to the ICC administrative expenses, as per the principles set forth in the Explanatory Note.

In application of the above, we kindly invite you to provide us with your EU VAT registration number within **30 days**. Should the requested information not be provided, ICC may charge and invoice the VAT.

Publication of Information on the Website

Pursuant to section “Publication of Information Regarding Arbitral Tribunals, Industry Sector and Law Firms Involved” of the Note, the Court publishes on its website information regarding the names of the arbitrators, their nationality, their role within a tribunal and the method of their appointment, the parties’ representatives in the case, the industry sector involved and whether the arbitration is pending or closed. Such information is published after the Terms of Reference have been transmitted to or approved by the Court, or after the Case Management Conference in cases where the Expedited Procedure Provisions apply, and will be updated in the event of a change in the party representation (without however mentioning the reason for the change). In this respect, the Court publishes such information unless any of the parties objects.

Publication of Awards

Pursuant to section “Publication of Awards, Procedural Orders, Dissenting and/or Concurring Opinions” of the Note, any award and/or order, as well as any dissenting and/or concurring opinion (“awards and related documents”) which may be made in the case, may be published in their entirety, including the names of the parties and the arbitrators, no less than two years after the date of said notification. The parties may agree to a longer or shorter time period for publication. Considering that awards and related documents may be published, arbitral tribunals are encouraged to include in their award a list of names of relevant individuals or entities involved in the case.

Parties and/or their representatives should consider the relevant applicable laws and establish whether any legal requirements or limitations may prevent the publication of awards and related documents, and inform the arbitral tribunal and the Secretariat accordingly. Any information in this regard available to the Secretariat will be communicated to the parties and the arbitral tribunal.

We note that a confidentiality agreement exists covering certain aspects of the contract. Therefore, publication will be subject to the parties’ specific consent. They can opt for publication by letting us know of their consent that any award and related documents be published within **30 days**. They may also consent that any award and related documents be in all or part anonymised (removal of names and any contextual data that may lead to identification of individuals, parties or disputes) or pseudonymised (replacement of any name by one or more artificial identifiers or pseudonyms), in which case it will be upon the parties to agree on the redactions or accept the redactions proposed by the Secretariat. In case of publication, we will send the draft to the parties and/or their representatives for their information, by using the contact details indicated in the award or any contact details subsequently provided.

Efficient Conduct of the Arbitration

The Rules require the parties and the arbitral tribunal to make every effort to conduct the arbitration in an expeditious and cost-effective manner having regard to the complexity and value of the dispute (Article 22(1)).

In making decisions as to costs, the arbitral tribunal may take into account such circumstances as it considers relevant, including the extent to which each party has conducted the arbitration in an expeditious and cost-effective manner (Article 38(5)).

Parties, counsel and arbitral tribunals are encouraged to consider implementing case management techniques designed to make arbitration fair and efficient (Appendix IV to the Rules). The Note also provides guidance on the organisation of conferences or hearings, including conducting such conferences and hearings by audioconference, videoconference, or other similar means of communication (see section “Conduct of the Arbitration” of the Note).

Amicable Settlement

Parties are free to settle their dispute amicably at any time during an arbitration. The parties may wish to consider conducting an amicable dispute resolution procedure pursuant to the ICC Mediation Rules. In addition to mediation, the Mediation Rules also allow for the use of other amicable settlement procedures. ICC can also assist the parties in finding a suitable mediator. Further information is available from the ICC International Centre for ADR at +33 1 49 53 30 53 or adr@iccwbo.org or www.iccadr.org.

Representation

We understand that INVICTUS HOLDING IC GMBH is also represented by BAKER MCKENZIE. Accordingly, all future correspondence addressed to INVICTUS HOLDING IC GMBH will be sent solely to its counsel.

If you are represented by alternative or additional counsel, please provide the relevant contact details.

Each party must promptly inform the Secretariat, the arbitral tribunal and the other parties of any changes in its representation (Article 17).

Communication with the Secretariat

We invite you to provide your email addresses as the Secretariat generally transmits correspondence by email. You should ensure that the contact details, and/or those of your counsel, are always up to date. Such persons will be authorised to access and communicate via ICC Case Connect. The information on record can be verified in the case details section of your ICC Case Connect case space. To inform the Secretariat of any changes in your representation, please contact your case management team.

Your Case Management Team

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While maintaining strict neutrality, we are at the parties' disposal regarding any questions they may have concerning the application of the Rules.

Please find enclosed a Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration that highlights certain key features of ICC arbitration which also includes key features of the Expedited Procedure Provisions. We also enclose a Case Information.

Finally, we invite you to visit our website at www.iccarbitration.org to learn more about our Dispute Resolution services.

Yours faithfully,

H. Hjartardóttir

Hjördis Birna Hjartardóttir
Counsel
Secretariat of the ICC International Court of Arbitration

encl. - Request for Joinder
- Case Information
- Financial Table

Enclosures available via ICC Case Connect:

- All correspondence exchanged to date (including the Request of Arbitration and answer and counterclaim, as well as documents mentioned therein)
- ICC Rules of Arbitration
- Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration
- Explanatory Note on VAT Applicable on ICC Administrative Expenses

c.c. By email:

- Harish Narasappa
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